

others from harm. As such, Plaintiff fails to demonstrate the existence of a triable issue of material fact as to whether the conduct at issue constitutes gross negligence and is thus outside the release of liability.

Plaintiff's arguments that there is a triable issue of material fact as to whether 24 Hour had notice of the assault by Hernandez

Lastly, Plaintiff argues that there is a triable issue of material fact as to whether 24 Hour had notice of the assault by Hernandez. However, again, the evidence submitted by both parties is that Plaintiff admitted that the assault was unexpected. There can be no triable issue of notice if the criminal act was unexpected. (See *Nicole M. v. Sears, Roebuck & Co.* (1999) 76 Cal.App.4th 1238, 1247 (stating that “[p]roperty owners have no duty to prevent unexpected and random crimes”); see also *Alvarez v. Jacmar Pacific Pizza Corp.* (2002) 100 Cal.App.4th 1190, 1209 (stating same).) Plaintiff fails to demonstrate the existence of a triable issue of material fact as to notice of the assault by Hernandez.

As defendant 24 Hour has met its burden to show that the complaint lacks merit against it and, in opposition, Plaintiff fails to demonstrate the existence of a triable issue of material fact, 24 Hour's motion for summary judgment is GRANTED.

Defendant 24 Hour shall prepare and submit a proposed final order and judgment consistent with this tentative ruling.

Calendar Line 7

Case Name: *Zhan Ping Ye et al. v. Summerton Condominium Association et al.*
Case No.: 26CV490111

Defendants Summerton Condominium Association (the “Association”), Gaurang Kumar Mhatre (“Mhatre”), Gabriel Ruiz (“Ruiz”), Laura Golding (“Golding”), and Common Interest Management Services (“CIMS”) (collectively, “Defendants”) demur to the sixth cause of action alleged in the first amended complaint (“FAC”) filed by plaintiffs Zhan Ping Ye and Yankui Yu (together, “Plaintiffs”).

First, Plaintiffs filed an opposition brief on September 11, 2026 titled “Declaration in Opposition and Plaintiff’s Opposition to Demurrer.” However, the court also notes that on September 2, 2026 Plaintiffs filed a document titled “Plaintiff’s Response to Defendants’ Assertion That the Fraud Claims Against the Three Individual Directors Lack Factual and Evidentiary Support.” It is unclear to the court if Plaintiffs intended this September 2, 2026 document to also function as an opposition brief to Defendants’ demurrer. To the extent that Plaintiffs did intend this, the court does not consider the September 2 document for the purpose of Plaintiffs opposing Defendants’ demurrer. Code of Civil Procedure section 1005 does not permit a party to file two separate oppositions to a single demurrer, and the September 2, 2026 document does not mention Plaintiffs’ demurrer.

Second, California Rules of Court, rule 3.1113, subdivision (d), imposes a 15-page limit on a responding memorandum. Plaintiffs’ opposition brief is 23 pages long, 21 pages without Plaintiffs’ declaration. The court, in its discretion, considers the entirety of the brief but cautions Plaintiffs to comply with the court rules and procedures with respect to future filings. Self-represented litigants “are held to the same standards as attorneys.” (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543, internal citation omitted.)

Third, the court cannot consider extrinsic evidence on a demurrer. Plaintiffs’ opposition contains a “joint declaration” that constitutes extrinsic evidence. (Declaration in Opposition and Plaintiffs’ Opposition to Demurrer (“Opposition”), p. 21:14-23:3, filed Sept. 11, 2026.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters.” (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905 (*SKF*).) The “only issue involved in a demurrer hearing . . . [is] whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (*McKenney v. Purepac Pharm. Co.* (2008) 167 Cal.App.4th 72, 77, internal citation and quotation marks omitted.)

Fourth, Plaintiffs filed an unauthorized “sur-reply” on September 18, 2026. The court has not considered this document. The California Rules of Court contemplate moving, opposition and reply papers. (Cal. Rules of Court, rule 3.1113(d).) The California Code of Civil Procedure also only contemplates the filing of moving papers, opposition, and a reply brief. (See Code Civ. Proc., § 1005, subd. (b).)

“The elements of fraud are (1) the defendant made a false representation as to a past or existing material fact; (2) the defendant knew the representation was false at the time it was made; (3) in making the representation, the defendant intended to deceive the plaintiff; (4) the plaintiff justifiably relied on the representation; and (5) the plaintiff suffered resulting damages.” (*West v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 792 (*West*), internal citation omitted.) “Fraud must be pleaded with specificity rather than with general and conclusory allegations. The specificity requirement means a plaintiff must allege facts showing how, when,

where, to whom, and by what means the representations were made, and, in the case of a corporate defendant, the plaintiff must allege the names of the persons who made the representations, their authority to speak on behalf of the corporation, to whom they spoke, what they said or wrote, and when the representation was made.” (*Id.* at p. 793, internal citations and quotation marks omitted.)

The court agrees with Defendants that the FAC fails to plead fraud with the requisite specificity. (Memorandum of Points and Authorities in Support of Demurrer (“MPA”), p. 7:8-13.) The FAC fails to adequately identify with specificity the misrepresentation that is the subject of the FAC’s sixth cause of action. (FAC, ¶¶ 73-76.) At best, the FAC states that the Association approved and imposed an “Emergency Special Assessment” and “Defendants represented, directly or indirectly, that the assessment was a lawful emergency assessment necessary for immediate health or safety conditions.” (*Id.* at ¶¶ 16, 73.) The FAC needs to specifically identify any alleged misrepresentation and also allege who made it, to whom the misrepresentation was made, when it was made, by what means, etc. (*West, supra*, 214 Cal.App.4th at pp. 792-793; see MPA, p. 8:16-27 [“There are no discrete fraudulent statements alleged to have been made by anyone employed by CIMS on specific dates to Plaintiffs, nor are there specific instances of alleged concealment of specific information by specific CIMS personnel on specific dates. . . . Likewise, as for the Association, there are no discrete fraudulent statements alleged to have been made by anyone employed or authorized by the Association on specific dates to Plaintiffs, nor are there specific instances of alleged concealment of specific information by specific Association personnel on specific dates. . . .”].)

In opposition, Plaintiffs direct the court to a number of facts that they argue constitute misrepresentations. (Opposition, pp. 9:23-10:19.) First, the court notes that many of the facts discussed in Plaintiffs’ opposition are not pled in the FAC. (*Id.* at p. 10:7-19 [“Defendants bundled routine Priority 2, 3, and 4 items across 89 locations into an inflated \$959,395 construction figure . . .”].) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters.” (*SKF, supra*, 153 Cal.App.3d at p. 905.) But, even putting this issue aside, the facts that Plaintiffs direct the court to in arguing that the FAC sufficiently alleges the first element of a fraud cause of action still do not identify any specific misrepresentation made by Defendants regarding whether the “assessment was a lawful emergency assessment necessary for immediate health or safety conditions.” (FAC, ¶ 73.) Instead, they describe alleged circumstances indicating that any representation regarding the necessity of an emergency assessment was falsely made. (Opposition, pp. 9:23-10:19 [“Absence of Any Statutory P1 Condition in 2022 and 2025 Engineering Reports . . .”].)

The court also notes that the FAC does not sufficiently allege reliance. The “plaintiff’s actual and justifiable reliance on the defendant’s misrepresentation must have caused him to take a detrimental course of action.” (*Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1062.) In turn, “the detrimental action taken by the plaintiff must have caused his alleged damage.” (*Ibid.*) The FAC’s sixth cause of action does not plead that Plaintiffs actually relied on any purported misrepresentation. (FAC, ¶¶ 73-76.)

To the extent that the FAC’s sixth cause of action alleges fraudulent concealment, the “required elements for fraudulent concealment are (1) concealment or suppression of a material

fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact.” (*Hambrick v. Healthcare Partners Medical Group, Inc.* (2015) 238 Cal.App.4th 124, 162 (*Hambrick*), internal citations and quotation marks omitted.)

Here, the FAC alleges that Defendants “concealed material facts, including true reserve activity, component balances, inconsistent reports, missing or classified funds, price support, bids, photographs, cost estimates, and the full basis for the assessment.” (FAC, ¶ 74.) While acknowledging that in the case of fraudulent concealment it is “harder” to apply the rule of pleading fraud with particularity, these allegations still do not identify what specific material facts any particular Defendant allegedly concealed and are subject to the FAC’s fraud cause of action. (See *Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384.) Nor does the FAC’s sixth cause of action plead duty, intent, or that Plaintiffs were unaware of any concealed material fact and would not have acted as they did if they had known of the concealed or suppressed fact. (FAC, ¶¶ 73-76; *Hambrick, supra*, 238 Cal.App.4th at p. 162 [“the “required elements for fraudulent concealment are . . .”].)

As to civil conspiracy, “a plaintiff must allege that the defendant had knowledge of and agreed to both the objective and the course of action that resulted in the injury, that there was a wrongful act committed pursuant to that agreement, and that there was resulting damage.” (*IIG Wireless, Inc. v. Yi* (2018) 22 Cal.App.5th 630, 652, internal citation omitted.) “A conspiracy requires evidence that each member acted in concert and came to a mutual understanding to accomplish a common and unlawful plan, that that one or more of them committed an overt act to further it.” (*Ibid.*, internal citation and quotation marks omitted.) “Where fraud is alleged to be the object of the conspiracy, the claim must be pleaded with particularity.” (*Prakashpalan v. Engstrom, Lipscomb & Lack* (2014) 223 Cal.App.4th 1105, 1136, internal citation omitted.)

The FAC does not sufficiently allege a civil conspiracy with the requisite degree of particularity required for a conspiracy cause of action predicated upon fraud. The FAC alleges that “Defendants acted together through a common plan: CIMS controlled information and enforcement; the directors approved and protected the plan; and the Association was used as the formal vehicle to demand payment and threaten enforcement.” (FAC, ¶ 76.) This appears to be the extent of any conspiracy-specific allegations in the FAC, and paragraph 76 does not specify who the specific “directors” are that “approved and protected the plan.” Nor does paragraph 76 define what the specific “plan” is or was, the “overt act” furthering it, and who specifically agreed to it. A plaintiff “must show that each member of the conspiracy acted in concert and came to a mutual understanding to accomplish a common and unlawful plan, and that one or more of them committed an overt act to further it. It is not enough that the conspiring officers knew of an intended wrongful act, they had to agree—expressly or tacitly—to achieve it. Unless there is such a meeting of the minds, the independent acts of two or more wrongdoers do not amount to a conspiracy.” (*Choate v. County of Orange* (2000) 86 Cal.App.4th 312, 333, internal citations and quotation marks omitted.)

The court SUSTAINS Defendants' demurrer to the FAC's sixth cause of action with 20 days' leave to amend.

Calendar Line 8

Case Name: *Citibank, N.A. v. Chan*

Case No.: 26CV489051

On March 11, 2026, plaintiff Citibank, N.A. ("Citibank") filed a complaint against defendant Jeannie Y. Chan ("Chan"), asserting a cause of action for breach of a credit card agreement. A proof of service filed on March 23, 2026 states that Chan was personally served on March 21, 2026. On April 13, 2026, Chan filed an answer to the complaint. On April 20, 2026, Chan filed a motion to quash service of the summons and complaint on the ground that the court lacks personal jurisdiction over her due to improper service of process.

"[I]t has long been the rule in California that a party waives any objection to the court's exercise of personal jurisdiction when the party makes a general appearance in the action." (*Roy v. Super. Ct. (Lucky Star Industries, Inc.)* (2005) 127 Cal.App.4th 337, 341; see also *Fireman's Fund Ins. Co. v. Sparks Construction, Inc.* (2004) 114 Cal.App.4th 1135, 1145 (stating that "[a] general appearance operates as a consent to jurisdiction of the person, dispensing with the requirement of service of process, and curing defects in service... a general appearance can make up for a complete failure to serve a summons").) "An answer, of course, is such an appearance, as is expressly made clear by [Code of Civil Procedure] section 1014: 'A defendant appears in an action when the defendant answers, demurs, [or] files a notice of motion to strike.'" (*Roy, supra*, 127 Cal.App.4th at p.341; see also *Batchelor v. Finn* (1959) 169 Cal.App.2d 410, 423 (stating that "[t]he filing of an answer is a general appearance"); see also *Neihaus v. Super. Ct. (Vaillancourt)* (1977) 69 Cal.App.3d 340, 345 (stating that "if such a defendant appears by formally answering a complaint, such an appearance is a general appearance and confers jurisdiction upon the court where none existed before").) "It has been long established by decisions of the courts of this state that where a defendant makes a general appearance by the